

PARLIAMENT OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

NATIONAL AQUATIC RESOURCES RESEARCH AND DEVELOPMENT AGENCY ACT, No. 54 OF 1981

[Certified on 2nd September, 1981]

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National Aquatic Resources Research and Development Agency Act, No. 54 of 1981

[Certified on 2nd September, 1981]

L. D.—O. 42/80.

AN ACT TO PROVIDE FOR THE ESTABLISHMENT OF THE NATIONAL AQUATIC RESOURCES RESEARCH AND DEVELOPMENT AGENCY, AND TO PROVIDE FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THERETO.

BE it enacted by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows :—

Short title and date of operation.

1. This Act may be cited as the National Aquatic Resources Research and Development Agency Act, No. 54 of 1981, and shall come into operation on such date as the Minister may appoint by Order published in the Gazette, (in this Act referred to as the "appointed date").

Establishment of the National Aquatic Resources Research and Development Agency.

2. There shall be established in accordance with the provisions of this Act, the National Aquatic Resources Research and Development Agency (hereinafter referred to as "the Agency") which shall be the principal national institution charged with the responsibility of carrying out and co-ordinating research, development and management activities on the subject of aquatic resources.

Agency to be a body corporate.

3. The Agency shall, by the name assigned to it by section 2, be a body corporate having perpetual succession and a common seal and may sue and be sued in its corporate name.

Objects and functions of the Agency.

4. The objects and functions of the Agency shall be—

- (a) to ensure the application and utilization of scientific and technological expertise for the implementation of the national development programme on the subject of aquatic resources ;
- (b) to promote and conduct research activities directed towards the identification, assessment, management and development of aquatic resources, and in particular in the following fields :
 - (i) oceanography ;
 - (ii) improvement and development of fishing craft, fishing gear and equipment, and fishing methods ;
 - (iii) the social and economic aspects of the fishing industry, including the welfare of fishermen and their dependants ;
 - (iv) the processing, preservation and marketing of fish and related products ;
 - (v) the development, management and conservation of aquatic resources in the inland waters, coastal wetlands and off-shore areas ;
- (c) to provide advisory and consultancy services on scientific, technological and legal matters relating to the exploitation, management and development of aquatic resources ;
- (d) to co-ordinate the activities of institutions engaged in the exploitation, planning, research, development, control and management of aquatic resources ;
- (e) to undertake the collection, dissemination and publication of information and data useful for the development of aquatic resources and the fishing industry in Sri Lanka ;
- (f) to provide training for persons required to carry out or assist in the work of the Agency ; and
- (g) to exercise, discharge and perform all the powers, functions and duties conferred or imposed on the Agency under this Act.

Powers and duties of the Agency.

5. The Agency shall have the power—

- (a) to acquire in any manner whatsoever and hold any movable or immovable property and to sell or otherwise dispose of any such property ;
- (b) to establish and maintain such facilities as offices, buildings, installations, laboratories, plant, equipment, vehicles, vessels and other crafts as the Agency may deem necessary to achieve its objects ;
- (c) to undertake such activities and operations, including extension services, as the Agency may deem necessary for the commercial utilization and development of aquatic resources and the application and utilization of its expertise ;
- (d) to enter into any contract or agreement with Government departments, local authorities, public corporations, and other persons for the purpose of carrying out its functions ;
- (e) to obtain loans on such terms and conditions as may be approved by the Minister with the

concurrence of the Minister in charge of the subject of Finance for the purpose of carrying out any of its objects ;

(f) to charge fees for any services or facilities provided by the Agency ;

(g) with the concurrence of the Minister in charge of the subject of Finance, to receive foreign or local donations and grants including awards for training and to provide grants for research, teaching and training relating to the management and development of aquatic resources ;

(h) to enter into contracts or agreements relating to the use of patents, industrial designs, copyright, and trade marks ;

(i) to conduct and render research and technical services—

(i) for the Ministry of the Minister to which the subject of Fisheries is for the time being assigned, with the object of ensuring the implementation of the national development programme of such Ministry, and

(ii) at the request of any other Ministry, Government department, or any branch thereof, public corporation, or any other person, in such manner as the Agency in consultation with the Minister shall deem advisable ;

(j) to advise and make recommendations to any Ministry, any Government department or branch thereof, or any public corporation or any other person—

(i) on research, management, development and regulation, including the conservation and utilization, of the aquatic resources of Sri Lanka, and

(ii) the formulation of national policies relating to the management and development of the national aquatic resources of Sri Lanka ;

(k) to prepare an Aquatic Resources Management Development and Research Plan and to revise such plan from time to time ;

(l) to institute and conduct surveys of national aquatic resources and off-shore areas of Sri Lanka ;

(m) to undertake and perform all such projects and functions as the Minister may, in consultation with the Governing Board, assign to the Agency in the implementation of the national development programme of the Ministry ; and

(n) to take all such measures as may be necessary for the fulfilment and performance of its objects and functions.

Constitution of the Governing Board.

6. (1) The powers and duties of the Agency shall be vested in a Governing Board (hereinafter referred to as "the Board") consisting of—

(a) eight members appointed by the Minister (hereinafter referred to as "appointed members") each of whom has distinguished himself in the field of management, research or development of aquatic resources ; and

(b) the following ex officio members—

(i) the person for the time being holding office as the Secretary to the Ministry of the Minister in

charge of the subject of Fisheries ;

(ii) the person for the time being holding office as the Secretary to the Ministry of the Minister in charge of the subject of Industries and Scientific Affairs or his representative nominated by such Minister ;

(iii) the person for the time being holding office as the Secretary to the Ministry of the Minister in charge of the subject of Finance or his representative nominated by such Minister ; and

(iv) the person for the time being holding office as the Director-General of the Agency.

(2) Every appointed member shall, unless he earlier vacates office by death, resignation or removal, hold office for a period of two years and shall be eligible for reappointment.

(3) Where any appointed member vacates office prior to the expiration of his term of office, the Minister shall appoint another person in his place to hold office for the unexpired period of the term of office of the member whom he succeeds.